

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of an appeal under and in terms of
Section 11 of the High Court of Provinces
(Special Provisions) Act No. 19 of 1990 and in
terms of Section 331 (1) of the Code of Criminal
Procedure Act No. 15 of 1979.

Court of Appeal Case No.:

CA/HCC/ 0213/24

High Court Colombo Case No.:

HC/1157/19

The Democratic Socialist Republic of Sri Lanka

Complainant

-Vs-

Wickremasinghege

Premathilake

Wickremasinghe

Accused

AND NOW BETWEEN

Wickremasinghege

Premathilake

Wickremasinghe

No. 249/ E/ 1, Horana Road,

Polgasowita, Kahathuduwa.

(Presently at Welikada Prison)

Accused-Appellant

-Vs-

Hon. Attorney General

Attorney General's Department

Colombo 12.

Complainant- Respondent

Before : **P. Kumaratnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Nalin Ladduwahetty, PC, with Kavithri Hirusha Ubeysekera for
the Accused-Appellant
Suharshi Herath, DSG for the Respondent

Argued on : 30-06-2026

Decided on : 17-09-2026

Pradeep Hettiarachchi, J

Judgment

1. The Accused-Appellant (hereinafter referred to as the “Appellant”) was indicted before the High Court of Colombo for three counts of committing the offence of grave sexual abuse, punishable under Section 365B (2) (b) of the Penal Code as amended by the Act No. 22 of 1995, No. 29 of 1998 and Act No. 16 of 2006 during the period of 01-01-2014 to 19-07-2014.
2. When the charges were read out to the Appellant, he pleaded not guilty to the charges. The trial commenced on 24-08-2022.
3. Six witnesses testified before the High Court on behalf of the prosecution.
4. At the conclusion of the trial, the learned High Court Judge found the Appellant not guilty of the first and the third counts and convicted him only for the second count. The learned High Court Judge sentenced him for 10 years' rigorous imprisonment. Additionally, the Appellant was also ordered to pay a fine of Rs. 50,000/- and serve a sentence of six months' imprisonment in the event of default. Also, he was ordered to pay the victim a sum of Rs. 100,000/- as compensation to the victim and a default sentence of six months' simple imprisonment.

5. Being aggrieved by the Judgment and the Sentencing Order dated 29-05-2024, the Appellant has preferred the instant Appeal.

Brief Facts of the Case

6. According to PW1, she is the only child in her family. Her mother had gone abroad when she was in grade one, entrusting her to the care of her Loku Amma, i.e., the mother's elder sister. PW1 was living with her aunt, her husband and their two children. PW1's father was doing a driving job in Mihintale at the time the alleged incident happened. However, PW1's father had come to see her on several occasions. It is stated by PW1 that her Loku Amma used to take her two children to the tuition classes around 4-5 pm on weekdays, and the three of them used to arrive home quite late, after attending classes. During this period, PW1 was alone at home, and her Loku Thaththa, who worked as a welder, used to return home around 6 pm, after finishing the day's work. PW1 testified that one day, when she was at their Piliyandala residence, the Appellant had asked her to come to the said bedroom and thereafter, the Appellant himself took her to the bedroom and upon entering from the door of the room, the Appellant carried her to the bed. PW1 was lying on the bed, and the Appellant was lying on top of her. According to PW1, she was wearing a frock, and the Appellant lifted her frock and removed her underpants. The Appellant had then kept his male organ on the genitals of PW1. PW1 had been subjected to acts of this nature about 3-4 times when she was at their Piliyandala residence. According to PW1, she had complained about these to her Loku Amma. However, her Loku Amma then told this to the Appellant. The Appellant had then threatened her, saying that she won't receive the same treatment as her cousin sister, Pinky, the Appellant's daughter who lives in the same house.
7. Upon being questioned, PW1 stated that she made the complaint to the National Child Protection Authority ("NCPA") when she was at her Kesbewa residence. According to PW1, she has remained at the Kesbewa Residence for about two years and similar incidents happened throughout these two years, at least two or three times per week. PW1's father had come to take her to Mihintale during the school vacation, and on their way back to her Loku Amma's place, she had told her father that she cannot stay at her Loku Amma's place anymore as her Loku Thaththa had been bothering her. According

to PW1, the last incident occurred in June 2014, about one month prior to the date that she had lodged the complaint at NCPA.

8. At the trial, it has been admitted by the Defense that PW1 was below 16 years of age at the time the alleged acts of grave sexual abuse took place. Furthermore, the Judicial Medical Officer who examined PW1 also gave evidence at the trial.
9. The Appellant also testified before the Court and stated that PW1's father, PW2, who was, at the time, a tour guide by profession, used to come to his home on Friday evenings and take PW1 with him and then return PW1 on Sunday evening. If it was during the vacation, then he would keep PW1 throughout the vacation. He further stated that, on certain occasions, PW2 arrived with foreign tourists and took PW1 with them. He stated that there was some animosity between him and PW2 as PW2 mistakenly believed that the Appellant helped PW2's wife to go abroad without his knowledge. The Appellant's son also testified on his behalf.

Grounds of Appeal

10. When this matter was taken up for argument, the following grounds of appeal were advanced by the Counsel for the Appellant;
 - (a) Has the learned High Court Judge pronounced a judgment in conformity with section 283 of the Code of Criminal Procedure Act?
 - (b) Has the learned High Court Judge failed to evaluate and consider the defense evidence?
 - (c) Has the learned High Court Judge cast an additional burden on the defense to prove its case?
 - (d) Has the learned High Court Judge failed to consider the possibility of collateral motives and its implications as demonstrated by the evidence and the prosecution's own suggestions?

- (e) Has the learned High Court Judge erred in concluding that the previous statement of the Prosecutrix corroborates her evidence?
- (f) Has the accused been deprived of a fair trial by withholding/exclusion of the video recording of the Prosecutrix's evidence?
- (g) Has the learned High Court Judge failed to consider the effect of acquittal of charges one and three on the overall evidence of the Prosecution?

Consideration of the Grounds of Appeal

11. Although the learned President's Counsel for the Appellant urged several grounds of appeal, I shall consider only the sixth ground of appeal as it is sufficient to dispose of this appeal.
12. Accordingly, the main contention of the learned Counsel for the Appellant is that the Appellant had been deprived of a fair trial as he was deprived of an opportunity to examine a video-recorded statement obtained from PW1 during the course of the investigation. It was further contended that, if the said video recording contained any material favorable for the defense case, the Appellant was deprived, by reason of the Prosecution's failure to disclose the same, of an opportunity to use such contents in the conduct of his defense.
13. In the present case, pursuant to the first information given by PW1, the police officers attached to the NCPA had subsequently recorded a video statement from PW1 (*Vide page 410 of the Appeal Brief*). It is on record that the OIC of the Special Police Investigation Unit attached to NCPA and a woman police constable named Janaki (No. 446) and a psychologist named Ms. Chandima Piligama had been present when the said video statement was recorded from PW1. In fact, the OIC of the Special Police Investigation Unit, in his letter dated 19-05-2015 addressed to the Chairman of the National Child Protection Authority, has clearly mentioned that the investigating officer had recorded a video statement from PW1. (*Vide page 425 of the Appeal Brief*).

14. The Respondent's position is that the aforesaid video recording was not relied on by the prosecution and that no issue regarding its production was raised at the trial stage. It was further contended that the Appellant has raised this issue for the first time before this Court.
15. The main issue to be determined is not whether the Prosecution has relied on the said video recording when leading evidence, nor whether the recording in fact contained any material favorable to the defense. Rather, the issue is whether the material generated in the course of the investigation, consisting of a prior statement made by the main witness in the case, could lawfully be withheld from the defense without affording the defense an opportunity to examine and whether such withholding is violative of the right to a fair trial guaranteed under Article 13(3) of the Constitution.
16. In this context, the case of ***Wijepala v Attorney General*** [2001] 1 Sri. LR 46 is of much relevance. It was held in this case that non-disclosure of the sole witness's first statement to the accused is a very serious irregularity that had occurred at the trial, and it had resulted in the impairment of the right of the accused to a fair trial under Article 13(3). Fernando. J, held as follows;

“Either Senaratne made a statement at the police post, or he did not. If he did not, his credibility was seriously in question. If, on the other hand, he had made that statement, then a very serious irregularity had occurred at the trial: the first information had neither been disclosed nor furnished to the accused and to the Court. Quite apart from that being a failure to make such disclosure as the statutory provisions require, the non-disclosure of that statement to the defence and to the Court resulted - for the reasons I set out below - in the impairment of the right of the Appellant to a fair trial which was his fundamental right under Article 13(3). That Article not only entitles an accused to a right to legal representation at a trial before a competent Court, but also to a fair trial, and that includes anything and everything necessary for a fair trial. That would include copies of statements made to the police by material witnesses.” [at pg 49]

.....

“The failure to disclose to an accused the existence and contents of the first information - which might have cast serious doubt on the informant's credibility - may well result in a miscarriage of justice. Rule 52 of the Supreme Court (Conduct of and Etiquette for Attorneys-at-Law) Rules, 1988, requires an Attorney-at-Law appearing for the prosecution to bring to the notice of the Court "any matter which if withheld may lead to a miscarriage of justice". That is a professional obligation founded on a constitutional right to a fair trial” (at pg. 51)

17. Also, in the case of ***State v Botha*** (1994) 4 SA 799, which was cited with approval in the case of ***Wijepala*** (at pgs. 50-51), Le Roux J, analyzing ***R v Stinchcombe***, had extracted six legal principles relating to the prosecution’s duty to disclose all the information which could assist the accused in his defense;

“The first of the six principles which Le Roux, J. extracts from Stinchcombe is that the information in the police docket belongs not to the police or the prosecution but to the public, not to secure a conviction but to see that justice is done. The second principle is that there is no duty on the accused to assist the prosecutor, who as far as he is concerned is his adversary. The third is that there is a general duty on the state to disclose to the defence all information which it intends adducing and also all information which it does not intend to use and which could assist the accused in his defence. This is not an absolute duty, but one which is subject to the discretion by the state to withhold privileged information and to delay disclosure if the investigation is not yet complete. Fourthly, the exercise of the state's discretion is reviewable by the trial court on application by the defence. Fifthly, initial disclosure must take place before the accused is called upon to plead. This is a continuing duty. If further facts come to light, the state is obliged to furnish them to the defence as soon as possible. The sixth and final principle is that the statements of all witnesses must be made available to the defence, whether or not they are to be called. If there is no complete statement but only notes, the notes must be made available and, if there

was an oral consultation, a summary of the evidence must be prepared and provided to the defence." (at pg 529)

18. Citing the above, Fernando. J, then went on to held that;

"These principles are, by and large, implicit in the right to a fair trial recognized in Article 13(3). Not only is no derogation permitted, but the Code of Criminal Procedure Act contains no inconsistent provision." (at pg. 51)

19. Furthermore, in the recently decided case of **Ramar Udayakumar v Attorney General** CA/HCC/175/2023 (Decided on 09-12-2025), this Court held that the failure of the prosecution to provide a copy of the second statement to the appellant has resulted in the impairment of the appellant's right to a fair trial. Kumararatnam J held as follows;

"A fair trial would refer to the legal procedure which has been set in place to guarantee the fair and just treatment of individuals accused of crimes, which includes rights such as public hearings by an independent and impartial court within a reasonable time period. Other key rights include the presumption of innocence until proven guilty, the right to legal representation, the ability to present one's case and the right to question and cross examine evidence against them. Such a legal guarantee is an internationally recognised human right which is absolutely necessary to ensure democracy and a just legal system.

Accordingly, in my view, the failure to provide the copy of the second statement to both the defence and the court has resulted in a great prejudice against the Appellant. Further, such a critical point not being noticed by the Learned High Court Judge has resulted in it being even more unjust to the Appellant."

20. Also, the Supreme Court in the case of **Hattuwan Pedige Sugath Karunarathne v Attorney General** SC Appeal 32/2010 (Decided on 20-10-2020) Aluwihare J, held as follows;

“..... No doubt the duty of a State Counsel is to present the Prosecution in an effective manner to the best of their ability in furtherance of securing a conviction, if the evidence can support the charge. The Prosecutor, however, is an officer of the court and their role is to assist the court to dispense justice. Thus, it is not for a Prosecutor to ensure a conviction at any cost, but to see that the truth is elicited, and justice is meted out. A Prosecutor is not expected to keep out relevant facts either from the court or from the Accused. If the investigation has revealed matters which are favourable to the Accused and the Accused is unaware of the existence of such facts, it is the bounden duty of the Prosecutor to make those facts available to the court and to the defence. Rule 52 of the Supreme Court Rules (Conduct and Etiquette for Attorneys at Law) Rules 1988 requires an Attorney at Law appearing for the prosecution to bring it to the notice of the court any matter which if withheld may lead to a miscarriage of justice.....”

21. The importance of allowing access to a statement recorded from the main witness in a trial is that it gives the opportunity for the defense to examine the statement and then decide whether it could be used to impeach/attack the credibility of the relevant witness that is going to testify against him. Therefore, withholding such information from an accused, which may have cast serious doubts on the prosecution, impairs the accused's right to a fair trial.
22. In the present case, it is in evidence that there was prior animosity between the father of PW1 (PW2) and the Appellant (*Vide pages 188, 190 and 205 of the Appeal Brief*). Therefore, there is a possibility, though not proved, that PW1 could have been coached by her father, driven by collateral motives to make the aforementioned allegations against the Appellant. It is in this context that the deprivation of an opportunity to examine the video recording of PW1 becomes more relevant. The said video recording may have contained material bearing upon PW1's credibility, consistency, or motive to make the allegation, or evidence of being coached. By being denied access to that material, the Appellant was deprived of the opportunity to ascertain whether the contents of the recording could be utilized in cross-examination to challenge the

reliability of PW1's testimony or to advance the defense case. Such deprivation strikes at the heart of the Appellant's right to adequately prepare his defense and to a fair trial.

23. Therefore, I am of the view that the prosecution's failure to provide a copy of the video-recorded statement of PW1 to the Appellant and the Court, which might have cast serious doubts on PW1's credibility, has resulted in a miscarriage of justice. It should have been brought to the notice of the defense, and the failure to do so amounts to a violation of Article 13(3) of the Constitution.

24. In the aforesaid circumstances, it is this Court's duty to assess whether this is a fit and proper case to be sent for a re-trial. In *Au Pui-Kuen v. AG of Hong Kong* (1980) AC 351, Lord Diplock stated the factors that should be taken into consideration when deciding whether to order a re-trial or not;

- i. *Interests of the public that people who are accused of serious crimes be brought to justice avoiding it purely on a technical error by a judge.*
- ii. *The strength of the evidence available against an accused and the likelihood of a conviction being obtained on a retrial.*
- iii. *The length of time that has elapsed from the time of offence and the new trial, if one is ordered.*
- iv. *The prejudice that would be caused to an accused due to the non-availability of the evidence which was available at the first trial.*
- v. *The weaker the prosecution case, the less the likely the retrial would be ordered.*

25. Furthermore, in *Kanaththa Randage Manoj Udaya Kumara v Hon. Attorney General* CA HCC/38/2019 (decided on 30-11-2021) it was held that;

“Miscarriage of justice” is also recognised as a ground to order a new trial. Miscarriage of justice means a failure of a Court or judicial system to attain the ends of justice.

26. As already stated above, the failure of the prosecution to provide a copy of the video-recorded statement of PW1 to the Appellant and the Court has resulted in a grave miscarriage of justice that warrants this Court to send this matter for a re-trial. Accordingly, I set aside the conviction and the sentence and order for a re-trial of the case.

Judge of the Court of Appeal

P. Kumararatnam, J.

I agree

Judge of the Court of Appeal